

25STCV26845 25STCV26845

County: los-angeles

Division: Civil Law and Motion

Department: 735

Hearing date: 2026-08-20

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Case Number: 25STCV26845 Hearing Date: August 20, 2026 Dept: 735

Guardado v. City Storage Systems, LLC, et al.

Plaintiff's Motion to Compel Further

Responses to Form Interrogatories from

Defendant City Storage Systems, LLC

BACKGROUND

On September 12, 2025, Plaintiff Kimberley

Guardado filed a complaint against Defendants City Storage Systems, LLC and Zarina Chudo, asserting ten causes of action for FEHA violations and wrongful termination.

DISCUSSION

Plaintiff moves to compel further responses

to set one of FIs from Defendant City Storage Systems. Plaintiff served the subject discovery on November 3, 2025. On December 3, 2025, Defendant served objections on the ground that the action is stayed pending the ruling on Defendant's motion to compel arbitration. Defendant filed its motion to compel arbitration on October 31, 2025, with a hearing date of September 29, 2026.

Plaintiff argues that Defendant is required

to serve discovery responses despite the pending motion to compel arbitration because there is no automatic stay pending a motion to compel arbitration and Defendant did not specifically request one. In opposition, Defendant asserts that a stay was requested in its motion to compel arbitration.

CCP §

1281.4 provides, in pertinent part, “[i]f

an application has been made to a court of competent jurisdiction, whether in this State or not, for an order to arbitrate a controversy which is an issue involved in an action or proceeding pending before a court of this State and such application is undetermined, the court in which such action or proceeding is pending shall, upon motion of a party to such action or proceeding, stay the action or proceeding until the application for an order to arbitrate is determined and, if arbitration of such controversy is ordered, until an arbitration is had in accordance with the order to arbitrate or until such earlier time as the court specifies.”

Here, Defendant’s motion to compel

arbitration requests only that the Court stay the action pending the outcome of the arbitration itself. It does not request the Court stay the action pending determination of the motion to compel arbitration. Generally, this situation would require Defendant to respond to discovery. However, because the hearing on the motion to compel arbitration is set for approximately one month after the hearing on this motion and approximately one month before the hearings on Plaintiff’s other three motions to compel further responses to discovery, the Court will instead continue the hearing on this motion to the date of the motion to compel arbitration. This will allow the Court to determine whether Defendant has any discovery obligations after ruling on the motion to compel arbitration, rather than requiring partial responses to discovery before hearing on that motion.

The Court continues the hearing on this motion to September 29, 2026 at 8:30am.

CONCLUSION

The Court continues the hearing on Plaintiff’s motion to compel further responses to form interrogatories to September 29, 2026 at 8:30am.

Defendant to give notice.